



File No.: EXP202202897

RESOLUTION FOR FILING OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On February 4, 2022, a complaint was filed with the Spanish Agency for Data Protection against ALPA 57 PRODUCCIONES, S.L. (hereinafter, the respondent or ALPA57).

The reasons for the complaint are as follows:

The respondent company impersonates the complainant's electricity company (IBERDROLA) to offer a discount on their bill over the phone, possessing all their data, and sending an SMS that should be confirmed to proceed with the discount, later realizing that it was a scam.

The complainant states that they have called several times the phone number from which they were contacted to withdraw any contract, but indicates that this phone number is unavailable and they do not have another phone or email on their website.

The complainant points out that there is no possibility of having transparent, direct, and quick contact with this company and adds that the only way to contact them is by filling out a form on their website with all personal data including bank account information or sending a letter by postal mail to the address listed on the website.

Relevant documentation provided by the complainant:

- Screenshot of the received SMS, indicating a link to the domain ***URL.1.
- Screenshot of the received calls.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on March 15, 2022, as evidenced by the acknowledgment of receipt in the file.

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No response has been received to this forwarding letter.

THIRD: On May 4, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

After analyzing the evidence provided by the complainant, an attempt is made to establish the involvement of the respondent in this complaint through two avenues:

- 1.- Ownership of the website referenced in the received SMS.
- 2.- Ownership of the phone from which the call was made.

Once the respondent has been identified, the investigation continues in point 3, with the aim of attributing responsibilities in the processing of the complainant's data.

- 1.- Ownership of the websites

On July 20, 2022, it was verified that it is not possible to navigate the website ***URL.1, as the website consists solely of a home page with an image and a link to the cookie policy at the bottom of the page, which loops to another page also lacking content: ***URL.2

The complainant indicates in their complaint that "the only way to contact them is by filling out a form on their website with all personal data including bank account information or sending a letter by postal mail to the address listed on the website [...]". It has been confirmed that this form is not generically accessible from the homepage of the website and that the link provided by the complainant is no longer operational and redirects directly to the homepage. The postal address to which a letter can be sent is also not obtainable.

Information regarding the registration of the following domains was consulted through the website "***URL.3":

- ***URL.1
- ***URL.4

In these consultations, it can be observed that both domains were registered through the company IONOS SE.

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On August 18, 2022, a request for information was made to the entity IONOS CLOUD S.L.U. (hereinafter, IONOS) regarding the registration and ownership of the aforementioned domains. The following information was received by the Agency on September 1, 2022:

- That the domain ***URL.1 was registered through IONOS on September 8, 2021.
- That the domain ***URL.4 was registered through IONOS on September 13, 2021.
- That both domains were associated with a service called "ES Hosting Expert LX 12M" (Contract ID XXXXXXXXX), contracted on November 23, 2020, at 09:18:16 hours, from the IP: ***IP.1, by the client:
- Name: A.A.A.
- NIF: ***NIF.1
- Address: Calle ***DIRECCIÓN.1
- Zip Code/City: ***CIUDAD.1
- Phone: ***TELÉFONO.1
- E-mail: ***EMAIL.1
- That this information has not changed since the client registered with IONOS, and therefore, as of January 31, 2022, the data in their customer database remained the same.
- That, regarding the data of the holder and the administrative contact of both domains (identical holder and administrative contact in both cases), the following is provided:

HOLDER:

- Name: A.A.A.
- Address: ***DIRECCIÓN.2
- Phone: ***TELÉFONO.1
- E-mail: ***EMAIL.1

ADMINISTRATIVE CONTACT:

- Name: A.A.A.
- Address: ***DIRECCIÓN.2
- Phone: ***TELÉFONO.1
- E-mail: ***EMAIL.1

On September 8, 2022, a consultation was made on the website of the Telecommunications Numbering and Operators Registry of CNMC to gather information about the operator to which the phone number provided by IONOS belongs. A screenshot of the obtained operator, corresponding to YOIGO, was recorded in the SIGRID system as an associated object.

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It is verified that the sole administrator of ALPA57 does not correspond with the holder of the domain ***URL.1, and information is requested from the INE to verify their postal address, confirming that it is at ***DIRECCIÓN.3.

The holder of the domains was required to provide, among other points, information about the origin of the personal data of the claimant and clarification of the relationship with the company ALPA57. On November 16, 2022, they submitted the following information and statements to this Agency:

- That they are professionally dedicated to the development of web applications and digital marketing.
- That they are a technology service provider for the company ALPA57 and received the commission to design a web application that sends an SMS to the contacts captured by ALPA57. This message includes a link to a webpage of ALPA57 in order to complete the contracting process for the services in which the contact is interested.
- That they only develop the application but do not obtain personal data from its users. Once the programming is completed, access data is provided to the client (ALPA57), and they put it into operation.
- That they generally register the domains of their clients in all projects to facilitate programming work and to ensure payment of their fees. In this case, their client ALPA57 chose ***URL.1. Once the agreed payments in the installment plan are completed, the domain is transferred to the client's name. The domain ***URL.1 remains in their name because the financing has not yet concluded.
- They attach invoices for services rendered, as well as proof of payment by ALPA57 (5,953.20€ + 1,016.40€ + 1,340.44€ = 8,310.04€):

* 5,953.20€:

Adaptation to the development of landing page for lead capture (Invoice 203)

Systematization of mass SMS sending from a list of numbers

Creation of backoffice for review of shipments

Hosting L

Domain and security certificate

Technical support for 30 business days (call, WhatsApp, and email)

* 1,016.40€:

SMS maintenance and customer service for the month of November.

* 1,340.44€:

Maintenance, support, and SMS for December.

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2.- Ownership of the phone since the call was made.

On August 19, 2022, a query was made on the CNMC's Telecommunications Numbering and Operators Registry website to ascertain the operator to which the phone number from which the call was made belongs. A screenshot of the operator obtained, which corresponds to VODAFONE as of that date, is recorded in the SIGRID system as an associated object.

Upon consulting VODAFONE for the identifying and contact details of the owner of the phone line ***TELÉFONO.2 on January 31, 2022, VODAFONE informed this Agency on August 29, 2022, that this phone line did not belong to that Company on the requested date, as it had been imported from YOIGO on June 22, 2022.

On September 8, 2022, information was requested from XFERA regarding the identifying and contact details of the owner on the date of the call from the phone line from which the call was made and from the phone line provided by IONOS of the owner of the line used in the domain registrations, responding to this request on August 29, 2022, and providing the following information:

***TELÉFONO.2: NEUTRA BUSINESS, S.L. B88287677 CALLE FERNANDO III EL SANTO 27 BAJO 3 28982 PARLA ES

***TELÉFONO.3: Activation: 2019-08-30; Deactivation: 2021-02-07; A.A.A.

***NIF.1 ***ADDRESS.1

***TELÉFONO.3:

Activation: 2022-07-19; ACTIVE;

THE MATRIX OF MARKETING SL NULL B10611432 ***ADDRESS.2

It is confirmed that the phone number provided by IONOS corresponds to the owner of the domain controlatusgastos.com, A.A.A., mentioned in the previous point.

It is verified in the Monitoriza service of ***URL.5 that the information provided for the phone line from which the call was made is contradictory: the CIF provided does not correspond with the name of the company given. Both possibilities are searched in the Monitoriza service of ***URL.5, the commercial reports of the two companies obtained through that service.

NEUTRA BUSINESS SL B39883830

MEDINA CAMPOY ASESORES SL B88287677

On November 4, 2022, information requests were sent to both companies. The notifications of both requests are recorded as expired in the Electronic Notification Service and Enabled Electronic Address, with an automatic rejection date of November 15, 2022.

On December 2, 2022, information was requested again from XFERA regarding the identifying and contact details of the owner on the date of the call from the phone line from which the call was made and confirmation of the existence of two calls made from the calling number ***TELÉFONO.2 to the called number ***TELÉFONO.3, responding to this request on December 28, 2022, and providing the following information:

- That there are no calls made from the calling number ***TELÉFONO.2 to the called number ***TELÉFONO.3 on January 31, 2022, at 10:42 and 10:49.
- That, on January 31, 2022, there is no owner associated with that number, as that number was inactive and not assigned to any customer on that date. The line has been inactive since September 8, 2021.

The last information provided by XFERA is contradictory to that provided in its response to the first request, so XFERA is requested again to provide the information.

On February 27, 2023, XFERA sent the following information and statements to this Agency:

- Reiteration that there are no calls made from the calling number ***TELÉFONO.2 to the called number ***TELÉFONO.3 on January 31, 2022.
- That Neutra Business, S.L. is a cable operator that resells numbering, so they have proceeded to request information regarding which of their clients had that number assigned on the indicated date.

The information provided by this cable operator is:

As of 01/31/2022:

Company name: MEDINA CAMPOY ASESORES S.R.L. with CIF: B88287677

CALLE FERNANDO III EL SANTO 27 BAJO 3 28982 PARLA ES

3.- Responsibilities in the processing of the claimant's data

REQUESTS TO ALPA57

- Request 1.-

On December 1, 2022, information was requested from the defendant regarding, among other points, the reason for making the commercial call, the consent of the claimant for receiving that commercial call, the origin of their personal data, and clarification of the relationship between ALPA57 and the domain controlatusgastos.com.

On December 16, 2022, the defendant sent only the following information and statements to this Agency:

- "We cannot provide the requested information, because after searching our files we have nothing on this person, although we do have that the contracting of that client was done by the company 'AIMART MARKETING SOCIEDAD LIMITADA', with CIF B16960718, and address at C/San Julián, nº9,

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left mezzanine, 02001, Albacete, in the capacity of our subcontractor, requiring the information related to said company."

The claimed party does not provide information nor clarifies the relationship between ALPA57 and the domain controlatusgastos.com. It should be noted that the claimant, in their writing, states that they did not formalize any contract change.

- Requirement 2.-

The claimed party is urged, on December 21, 2022, to provide a screenshot from their systems of all data held by their entity associated with the claimant and the origin of this data, as well as clarification of the relationship with the domain ***URL.1 and a copy of the contract signed between AIMART and ALPA57.

On January 1, 2023, the claimed party sends the following information and statements to this Agency:

- That they cannot provide the requested information because "the data was obtained by AINMART MARKETING SL., and the claimant does not appear in any of our files. We also do not have access to the platform of the marketer with which the claimant was a client since we stopped working for them at the beginning of 2022."

- That ***URL.1 "is a lead collection platform that has collaborated with us in the past."

- They send a copy of the contract signed between AIMART and ALPA57, dated September 19, 2021. DOC#Contract_commercial

The contract DOC#Contract_commercial provided is a commercial contract for the sale and promotion of the products and services of the MARKETER and involves ALPA57 as DISTRIBUTOR and AIMART as SUBDISTRIBUTOR, with the former being the holder of distribution contracts for the service with the ENERGY MARKETERS ALDRO ENERGÍA (ALDRO ENERGIA Y SOLUCIONES SL, hereinafter ALDRO) and MAS LUZ ENERGIA (SUMINISTRADOR IBERICO DE ENERGIA SL, hereinafter MASLUZ), as stated in Annex I of the contract:

"The company ALPA 57 PRODUCCIONES S.L. authorizes the commercial company AINMART MARKETING S.L. to sub-distribute the service and products of ALDRO ENERGÍA (ALDRO ENERGIA Y SOLUCIONES SL) AND MAS LUZ ENERGIA (SUMINISTRADOR IBERICO DE ENERGIA SL)."

It is noteworthy that:

1.3.- The DISTRIBUTOR will make available to the SUBDISTRIBUTOR all information related to potential clients, as well as catalogs, brochures, samples, technical and commercial information in general in order to facilitate the provision of services and the consequent possible celebration of sales and/or supply contracts for the Products.

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In section 15.- CONFIDENTIALITY AND DATA PROTECTION, it is stated:

15.2.- [...] the SUBDISTRIBUTOR will be considered as the "data processor" of the data of the entity by the DISTRIBUTOR. and, accordingly, it is expressly established that the SUBDISTRIBUTOR will only process the data according to the instructions of the DISTRIBUTOR, [...].

The provisions in Annex IV "Data Processing Agreement" will be an integral part of this contract.

Although mentioned in the contract, the provided copy does not include Annex IV "Data Processing Agreement."

15.5.- The SUBDISTRIBUTOR does not have access to the customer databases of the DISTRIBUTOR, stating that they are the owner of their own customer databases for the purpose of being able to carry out the marketing tasks object of this contract. For these purposes, the SUBDISTRIBUTOR STATES that their customer databases have been developed in accordance with best practices and current legality at the time of their development, and have been obtained with the express consent of the customers for the following purposes [...]:

According to the contract signed between ALPA57 and AIMART, AIMART is the owner of its own customer databases, guarantees that the personal data stored in its databases are completely lawful

and declares to have the informed, unequivocal, and express consent to process personal data and to transfer them to third parties.

It is noted that page 13 of 13 of the contract DOC#Contract_commercial, which presumably contains the unprovided Annex IV, has not been delivered.

- Requirement 3.-

On February 9, 2023, a new request for information is sent to the claimed party to request:

- the Data Processing Agreement, which should be included as an annex in the contract signed between AIMART and ALPA57,
- the contracts with the energy marketers referenced in said contract, and
- the contract formalized between ALPA57 and controlatusgastos.com.

In response to this request, the claimed party sends a letter to this Agency dated February 16, 2023, attaching the following documentation:

- DOC#1: ANNEX 4 - Data Processing Agreement, annexed to the commercial contract DOC#Contract_commercial dated September 19, 2021.
- DOC#2: Contract signed between ALPA 57 PRODUCCIONES, S.L. and ALDRO ENERGIA Y SOLUCIONES S.L. dated July 24, 2020.

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- DOC#3: Contract signed between ALPA 57 PRODUCCIONES, S.L. and ALDRO ENERGIA Y SOLUCIONES S.L. dated October 17, 2019.
- DOC#4: Contract signed between ALPA 57 PRODUCCIONES, S.L. and MAS LUZ dated February 3, 2021.

Regarding the copy of the contract formalized between ALPA57 and controlatusgastos.com, the responding party states that "we cannot access the requested documentation due to the closure of the platform."

As of February 20, 2023, it is confirmed that the platform remains active.

Analysis of the documentation provided in request 3:

- DOC#1: ANNEX 4 - Data Processing Agreement, annexed to the commercial contract DOC#Commercial_Contract signed on September 19, 2021, whose purpose is to enable the entity in charge of processing (AIMART) to process on behalf of the data controller (ALPA57) the personal data necessary to fulfill the commercial contract for the sale and promotion of the products and services of the MARKETER, to which the data processing agreement is attached.

Upon reviewing the annex, it is observed that it contains 7 pages (which is inconsistent with a single missing page in the document DOC#Commercial_Contract) and that this data processing agreement takes into account aspects specified in Article 28.3 of the GDPR.

- Object
- Type of personal data
- Duration
- Obligations of the Data Processor: Among others, it is specified that the processor must:
 - * process the data in accordance with the instructions of the data controller,
 - * maintain a record of all categories of processing activities carried out on behalf of the controller, which contains the name of the processor(s), the categories of processing, international data transfers, and a general description of the technical and organizational security measures.
 - * Not disclose the data to third parties, unless expressly authorized by the data controller, in legally permissible cases. The processor may disclose the data to other processors of the same controller, in accordance with the instructions of the controller. In this case, the controller will identify, in advance and in writing, the entity to which the data must be disclosed, the data to be disclosed, and the security measures to be applied for the disclosure.
 - * Subcontracting as provided in the contract.
 - * Assist the data controller in responding to the exercise of rights.

* At the time of data collection, provide information regarding the data processing that will be carried out.

* Notify data security breaches.

.- Responsibility of the Data Processor: the processor will be considered responsible for processing in the event that it uses the data for another purpose or uses it in violation of the contract. In this case, it will be liable for the infringements.

Reminder: According to the document DOC#Commercial_Contract, the commercial contract signed between ALPA57 and AIMART, AIMART is the owner of its own customer databases, guarantees that the personal data stored in its databases is completely lawful and declares that it has informed, unequivocal, and express consent to process the personal data and to transfer it to third parties. Although the claimant did not formalize any contract changes, as they realized the alleged fraud before accepting it, the study of the contracts signed between ALPA57 and the marketers referenced in its contract with AIMART is included below.

-. DOC#2: Contract signed between ALPA57 and ALDRO, dated July 24, 2020.

It consists of a pilot collaboration project between the two aforementioned entities, lasting one month, in which ALPA57 "commits to provide ALDRO with the services of promotion, prospecting, advising, and support to its commercial department for those customers who have canceled with ALDRO in favor of another marketer."

This pilot project is integrated as a special campaign within the service provision contract previously signed by ALPA57.

In Clause FIFTH, the operation to be carried out for the retention of the "HOME CUSTOMER" and the involved data is established:

-. ALDRO exports the CUPS in Excel format with the status "Canceled marketer."

-. The exported data has a temporal usage limit: 30 days

-. ALPA57 "will carry out its retention work of the 'HOME CUSTOMER' in accordance with the instructions indicated by ALDRO at all times."

Annex I specifies the products and services of ALDRO in effect as of the date of signing this Annex.

-. DOC#3: Contract signed between ALPA57 and ALDRO, dated October 17, 2019.

The submitted document is incomplete and contains only even pages (or odd pages). With the information provided, it is confirmed that:

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This is a service provision contract between ALDRO and ALPA57, ALDRO as the company that markets electricity and gas and provides energy efficiency services and facility maintenance, and ALPA57 as a collaborator, a self-employed entrepreneur who develops advisory and commercial and technical support activities for client acquisition.

In section 6 (xii), it is specified that all subcontracting of work by ALPA57 is prohibited, except with prior written approval and under the conditions set by ALDRO.

In section 7 (iv). "Obligations of ALDRO," it is indicated that it will be the responsibility of ALDRO to formalize contracts with clients acquired by ALPA57.

In Annex III, "Documentation related to the client and work methodology," section 1.2 states that: "ALDRO will request the Collaborator to obtain the client's signature on the contracts or the telephone recording of the sale, as express proof of the client's consent to the contracting of the Products and Services. In any case, contracts with clients will be formalized by ALDRO as long as there is express consent to the conditions thereof, following verification of the corresponding contractual documentation and/or the telephone recording of the sale by ALDRO."

Annex IV deals with the Data Processing Agreement for personal data.

In clause I, it is established that "ALDRO, as the data controller, authorizes ALPA57, as the data processor, to access and/or process on behalf of the controller the personal data necessary for the provision of the services outlined in the contract."

In clause IV. "Obligations of the data processor," k), paragraph 2 states that "The processor previously commits to ensuring the controller that the data subjects have expressly authorized their consent to receive commercial offers from the controller, at least related to the energy sector, and is responsible for the legitimacy of the databases it uses, which must be owned by it, leaving the controller indemnified from any damage, claim, or litigation that may arise due to the breach of any of the aforementioned commitments."

-. DOC#4: Contract signed between ALPA57 and MASLUZ, dated February 3, 2021.

This is a telemarketing service provision contract involving ECOLOGICAL RECYCLING CANTABRIA SL (MASLUZ) and ALPA57, with MASLUZ being an authorized distributor of the company IBERIAN ENERGY SUPPLIER.

In point 11 "Data Protection," it is indicated that ALPA57 will use either databases provided by MASLUZ or its own database of potential clients. ALPA57, prior to using its own database, will guarantee and

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will certify by providing all necessary documentation that the origin of said database is legitimate and that it has the consent of potential clients for the execution of commercial actions.

Regarding subcontracting, point 12, ALPA57 may not subcontract all or part of the services to other companies for their execution, except with the express and written consent of MASLUZ, nor assign the contract or any rights or obligations arising from it, except with the express and written consent of MASLUZ.

Annex II specifies the "Work Methodology," in which, in the first stipulation, the contracting procedure is outlined. It is indicated that ALPA57 will accurately collect all personal data listed in point 1.1 (Full name, ID number, phone number, email, etc.) from the client and will inform MASLUZ's applications of said data, as well as the necessary documentation for contracting.

ALPA57 will send the client their contract through the MASLUZ application for them to sign. Under no circumstances may a signing method not provided or expressly validated by MASLUZ be used.

ALPA57 will be responsible for verifying and authenticating the contractual consent of new clients.

ALPA57 must provide MASLUZ with the complete and uncut recording of the sales process. Without this recording uploaded to MASLUZ's systems, the telephone sales contract will have no validity.

Annex I covers "Access and Data Processing," with MASLUZ as the data controller and assignee and ALPA57 as the provider, assignor, and/or data processor. It is confirmed that the aspects specified in Article 28.3 of the GDPR are taken into account.

In this Annex, in the "Manifest," it is specified that MASLUZ is the sole owner of the data contained in the records that it will provide to ALPA57 to carry out its services. Specifically, ALPA57 "will make commercial calls to contacts from a database provided by MASLUZ, which will guarantee and certify by providing all necessary documentation that the origin of said database is legitimate and that it has the consent/authorization of potential clients [...]"

In stipulation SIXTH, MASLUZ expressly prohibits the subcontracting of third parties unless expressly authorized.

On February 23, 2023, a new request for information is sent to the summoned party to request a complete copy of the contract signed between ALPA 57 PRODUCCIONES, S.L. and ALDRO ENERGIA Y SOLUCIONES S.L., dated October 17, 2019, since the document provided in response to the previous request was incomplete, as it only contained the odd-numbered pages. The request is accepted on February 23, 2023.

ALPA57 responds to this request with a submission date of March 3, 2023, attaching the complete requested contract. It is verified that this document matches the DOC#3 contract provided earlier, this time providing the complete document.

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REQUESTS TO AIMART MARKETING SOCIEDAD LIMITADA

On December 21, 2022, a request for information is sent to AIMART to clarify, among other points, the reason for making the commercial call, the consent of the claimant for receiving such commercial calls, and the origin of their personal data.

The summoned party is notified on December 22, 2022, via the Electronic Notification Service and Authorized Electronic Address, with B.B.B. being the recipient with a certificate of representation from AIMART.

Having exceeded the response deadline without receiving a written response in this Agency, the request for information is reiterated on February 8, 2023, by the same means, with an automatic rejection date recorded as February 19, 2023.

LEGAL GROUNDS

I

Competence

According to the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Data Protection Agency is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Security of Processing

Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

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b) the ability to ensure the confidentiality, integrity, availability, and permanent resilience of processing systems and services;

c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;

d) a process for regular verification, evaluation, and assessment of the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, particularly as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The data controller and the data processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law."

III

The complaint is filed because the complainant received a phone call impersonating Iberdrola (his company) offering him a discount. The complainant states that the caller had all his data. They sent him an SMS to confirm the contract, and the complainant notes that the link belongs to controlatusgastos.com. Due to suspicions, he does not access the link and calls Iberdrola, which tells him that they have not called him to offer any discount.

After the investigative actions carried out, and having requested information from XFERA regarding the identifying and contact details of the holder, on the date of the call, of the telephone line from which the call was made and confirmation of the existence of two calls made from the calling number

***PHONE.2 to the called number ***PHONE.3, the following response is received:

- That there are no records of calls made from the calling number ***PHONE.2 to the called number ***PHONE.3 on January 31, 2022, at 10:42 and 10:49.
- That, on January 31, 2022, there is no holder associated with that number, and on that date, such number was inactive and not assigned to any customer. The line has been inactive since September 8, 2021.

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Therefore, it has not been possible to identify the person or entity that made the calls, as there is a lack of documentary evidence of their occurrence, according to the information provided by the telecommunications operator.

On the other hand, it is noted that the responsible party for ***URL.1 is Alpa57, who indicates that he has no data on the complainant.

In this case, from the documentation in the file, it is clear that there are insufficient elements for attributing responsibility for the commission of the examined facts.

IV

Conclusion

In summary, the complainant alleges that the link he receives via SMS redirects him to a page that contains all his personal data. It has been confirmed that this form is not generically accessible from the homepage of the website ***URL.1 and that the link provided by the complainant is no longer operational and redirects directly to the homepage.

It is not possible to navigate the website ***URL.1, as the website consists solely of a homepage with an image and a link to the cookie policy at the bottom of the page, which loops to another page that is also devoid of content: ***URL.2

No evidence has been obtained regarding the origin of the SMS; likewise, no evidence has been obtained regarding the calls made. The complainant's telephone operator indicates that there are no records of calls from the calling number to the called number on that date.

Therefore, based on the information indicated in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection, as it has not been possible to attribute responsibility for the processing prior to the making of the call.

In accordance with the above, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to ALPA 57 PRODUCCIONES, S.L., and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October

1, the
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16/16

Interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file an administrative contentious appeal before the Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

Mar España Martí
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